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IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

Case No.: 24CR27775

STATE OF OREGON,
Plaintiff,

vs.

ASHLE' PENN,

Defendant, In Propria Persona.

DEFENDANT'S MOTION FOR TELEPHONIC APPEARANCE PURSUANT TO ORS §45.400, HB 2461, PJO 343, AND CHIEF JUSTICE ORDER NO. 23-028

Disclosure and Certification Pursuant to UTCR 4.010 and UTCR 1.090

Defendant AshLe' Penn, appearing *in propria persona* after this Court placed her on the unrepresented list, certifies pursuant to UTCR 4.010 and UTCR 1.090 that this motion is submitted in good faith; that the legal contentions herein are warranted by existing law or a non-frivolous argument for the extension, modification, or reversal of existing law; that every factual contention has evidentiary support or is specifically identified as likely to have evidentiary support after a reasonable opportunity for investigation; that no known factual misrepresentations are presented; and that all legal authorities cited are drawn from published court opinions, constitutional provisions, statutory texts, or court orders. This document is filed in compliance with the Washington County Supplementary Local Rules (SLR), UTCR Chapter 2 document standards, and UTCR 21.100 *et seq.* (electronic filing). This communication constitutes a special appearance only and shall not be construed as a general appearance or a waiver of any jurisdictional defense, objection to notice, or any other right or objection available to Defendant.

I THE HEARING AND THIS REQUEST

Defendant AshLe' Penn has been informed by Trial Court Administrator Richard Melmer, in a telephone call on March 17, 2026, that a hearing has been scheduled in the above-captioned matter for March 19, 2026, concerning the state's objection to the dismissal of this case. Defendant hereby moves for authorization to appear telephonically at that

hearing, pursuant to ORS §45.400, as amended by HB 2461 (effective January 1, 2026), Washington County Presiding Judge Order No. 343, and Chief Justice Order No. 23-028.

The hearing was not initiated by Defendant. It was set at the state's request, on the state's objection to a dismissal Defendant understands to be mandatory and without prejudice. Defendant did not receive proper notice of any prior proceedings in this matter through any reliable channel, as set forth in Section II below. The state cannot bootstrap that notice failure into a requirement of in-person attendance as a condition of Defendant being heard on a hearing she did not initiate.

II NOTICE TO DEFENDANT HAS BEEN CRITICALLY DEFECTIVE

A OPDC Listed as Counsel — Notice Sent to Salem, Not to Defendant

The court's own record reflects that notice of hearings in cases involving Defendant has been directed to the Oregon Public Defense Commission (OPDC) in Salem. OPDC is not, and has never been, Defendant's counsel in this matter. Court staff previously informed Defendant that OPDC's listing in the case record is an administrative placeholder used to designate unrepresented status. This means the court has been systematically sending hearing notices to Salem — to an entity that is not Defendant's counsel, does not represent Defendant, and has no mechanism to relay notices to her — while Defendant receives nothing.

This is not a theoretical notice failure. It is a documented structural defect in the court's own notification system, one the court was aware of, and one that is now being used retroactively to support adverse proceedings against a defendant who had no knowledge of those hearings.

B Contact Information Altered on December 30, 2025 Without Defendant's Knowledge or Consent

Court clerks have confirmed to Defendant that her contact information in the court's record was modified on December 30, 2025, by a criminal justice employee — without Defendant's request, without Defendant's knowledge, and without any notation of who made the change or why. The clerk declined to identify what the information was changed to. Defendant has a pending public records request for this information. This unauthorized alteration of contact information, timed to coincide with the initiation of a contempt

proceeding on December 30th, directly compromised Defendant's ability to receive notice of any subsequent proceedings.

C Mail Access Has Been Denied by Defendant's Landlord

Defendant's landlord has failed to provide a mailbox key despite Defendant's request, in violation of the lease. Defendant therefore cannot reliably access physical mail. This is a documented, ongoing circumstance of which the court has been made aware.

D Combined Effect: No Reliable Notice Channel Has Existed

The combined effect of these conditions — OPDC placeholder routing, unauthorized contact information alteration, and landlord-caused mail inaccessibility — is that Defendant has had no reliable mechanism to receive notice of any hearing in this case through any channel the court has used. The court cannot treat Defendant as having had constructive notice under these circumstances and then hold her accountable for failing to appear at hearings she was not notified of, for which she has not been provided counsel, and for which she has not had an appropriate opportunity to prepare.

III THE NATURE OF TOMORROW'S HEARING AND WHY IN-PERSON ATTENDANCE IS NOT REQUIRED

The hearing set for March 19, 2026, concerns the state's objection to the dismissal of this case. Defendant did not initiate this hearing. A dismissal without prejudice does not terminate the state's ability to refile. It does not permanently extinguish the prosecution. It is, by definition, not legally prejudicial to the state. The state cannot demonstrate prejudice from a without-prejudice dismissal because none exists as a matter of law.

A hearing to consider whether the state may object to a mandatory, non-prejudicial dismissal is a legal and procedural proceeding. It does not require sworn testimony. It does not require exhibits. It does not require Defendant's physical presence in a courtroom to be fairly resolved.

It would be constitutionally impermissible to issue a warrant for Defendant's failure to appear in person at a hearing: (a) for which Defendant received no actual or constructive notice permitting adequate preparation; (b) that Defendant did not initiate; (c) that concerns a dismissal that is mandatory and without prejudice to the state; and (d) at

which no in-person participation by Defendant is legally necessary. Trial Court Administrator Melmer's implication that failure to appear could result in a warrant confirms that the purpose of requiring in-person attendance is not to resolve the legal question before the court — it is to produce Defendant's physical presence so that process in a separate matter may be executed. That is not a legitimate judicial purpose.

IV DEFENDANT REMAINS UNREPRESENTED AND CANNOT FAIRLY OPPOSE THE STATE WITHOUT COUNSEL

Defendant has been without counsel throughout adverse proceedings in this matter. The state's ability to be heard on its objection, while Defendant remains unrepresented and while the notice defects set forth in Section II remain uncured, compounds every procedural defect identified herein. Telephonic appearance is not a privilege — it is the minimum accommodation that permits Defendant to participate in a hearing she did not initiate, on a dismissal she contends is mandatory, without being required to appear in person under circumstances in which a warrant has been threatened.

V RELIEF REQUESTED

Defendant respectfully requests:

1. Authorization to appear telephonically at the March 19, 2026 hearing at **(424) 242-3374**, pursuant to ORS §45.400, HB 2461, Presiding Judge Order No. 343, and Chief Justice Order No. 23-028.
2. In the alternative, a continuance of the hearing until Defendant has received proper notice through a reliable channel, the notice defects set forth in Section II have been remedied on the court's record, and Defendant has had a meaningful opportunity to secure representation or prepare for the hearing.
3. A written order on this request, with findings, so that appellate rights may be preserved.
4. That no warrant issue for Defendant's failure to appear in person at a hearing she did not initiate, for which she received no proper notice through any reliable channel, and which concerns a mandatory dismissal that is without prejudice to

the state.

Defendant expressly preserves all rights, objections, and defenses, including but not limited to the right to counsel, due process rights under the Oregon and United States Constitutions, the right to notice of proceedings, and all objections based on defective service and defective notice.

Respectfully submitted,

/s/ AshLe' Penn
Defendant — In Propria Persona
17548 NW Springville Road, Unit 9
Portland, OR 97229
(424) 242-3374
ashlepenn.ap3@gmail.com

Date: March 18, 2026

CERTIFICATE OF SERVICE

I hereby certify that on the date set forth below, I served a true and correct copy of the foregoing **Defendant's Motion for Telephonic Appearance Pursuant to ORS §45.400, HB 2461, Presiding Judge Order No. 343, and Chief Justice Order No. 23-028** upon the following parties by the method indicated:

Washington County District Attorney's Office
150 N. First Avenue, Suite 300
Hillsboro, Oregon 97124
Method of Service: OJD eFiling and eServe

Washington County Circuit Court — Criminal Division
Trial Court Administrator Richard Melmer
150 N. First Avenue
Hillsboro, Oregon 97124
Method of Service: OJD eFiling

Presiding Judge Rebecca D. Guptill
Washington County Circuit Court
150 N. First Avenue
Hillsboro, Oregon 97124
Method of Service: OJD eFiling

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

Respectfully submitted,

/s/ AshLe' Penn
Defendant — In Propria Persona

17548 NW Springville Road, Unit 9

Portland, OR 97229

(424) 242-3374

ashlepenn.ap3@gmail.com

Date: March 18, 2026